

STATE OF NEW YORK

4016--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. MAGNARELLI, SEAWRIGHT, KAY, GONZALEZ-ROJAS, GLICK, LUPARDO, REYES, MEEKS, DILAN, DAVILA -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to fines imposed for failure to exercise due care and move over when approaching parked, stopped or standing motor vehicles on the shoulder of a highway

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 1800 of the vehicle and traffic law is amended by
2 adding a new subdivision (j) to read as follows:

3 (j) Every person convicted of a violation of the provisions of section
4 eleven hundred forty-four-a of this chapter shall for a first conviction
5 thereof be punished by a fine of not more than two hundred seventy-five
6 dollars or by imprisonment for not more than fifteen days or by both
7 such fine and imprisonment. For a conviction of a second violation, both
8 of which were committed within a period of eighteen months, such person
9 shall be punished by a fine of not more than four hundred fifty dollars
10 or by imprisonment for not more than forty-five days or by both such
11 fine and imprisonment. For a conviction of a third or subsequent
12 violation, all of which were committed within a period of eighteen
13 months, such person shall be punished by a fine of not more than seven
14 hundred fifty dollars or by imprisonment for not more than ninety days
15 or by both such fine and imprisonment.

16 § 2. This act shall take effect January 1, 2026 and shall apply to
17 violations committed on and after such date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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